

HOUSE No. 1576**The Commonwealth of Massachusetts**

PRESENTED BY:

Christopher J. Worrell*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to creating a permanent affordability homeownership program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Christopher J. Worrell</i>	<i>5th Suffolk</i>	<i>1/17/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/7/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/21/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/4/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>3/5/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/8/2025</i>
<i>Russell E. Holmes</i>	<i>6th Suffolk</i>	<i>4/8/2025</i>
<i>Amy Mah Sangiolo</i>	<i>11th Middlesex</i>	<i>6/17/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>6/25/2025</i>
<i>Hannah Bowen</i>	<i>6th Essex</i>	<i>7/21/2025</i>
<i>William F. MacGregor</i>	<i>10th Suffolk</i>	<i>8/1/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>8/8/2025</i>

HOUSE No. 1576

By Representative Worrell of Boston, a petition (accompanied by bill, House, No. 1576) of Christopher J. Worrell and others for legislation to create a program for the development and construction of permanently affordable homeownership opportunities for low and moderate income buyers. Housing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to creating a permanent affordability homeownership program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 23B of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by adding the following new section:-

3 Section 31. (a) for the purposes of this section, the following words shall, unless the
4 context clearly requires otherwise, have the following meanings:-

5 “Executive office” shall mean The Executive Office of Housing and Livable
6 Communities.

7 “Low and moderate income” shall mean persons whose income is not less than 70
8 percent, or more than 120 percent of the area median income as defined by the United States
9 Department of Housing and Urban Development.

10 "Mixed-use development", development containing a mix of residential uses and non-
11 residential uses, including, without limitation, commercial, institutional, industrial or other uses.

“Permanently affordable” shall mean a housing unit that has an affordable housing restriction as defined in Section 31 of Chapter 184 of the General Laws which has the benefit of Section 32 of said Chapter 184 that shall be in place for not less than 99 years.

“Project of appropriate size” shall mean a development project that has no less than 1 and no more than 25 housing units.

(b)(1) Subject to appropriation, the executive office shall administer a program known as the permanent affordability homeownership program. The executive office shall administer the program statewide in order to aid in the development and construction of permanently affordable homeownership opportunities for low and moderate income buyers in the Commonwealth. The commonwealth shall accept funds from the appropriate federal authorities for said program.

(2) The executive office shall promulgate rules and regulations in order to establish the process through which applications to the program will be made, how funding will be allocated and the amount of money to be allocated per housing unit, provided the following:

(i) Funds expended from the program may only be used to fund the creation of permanently affordable homeownership units; provided however, that the funds can be used to fund permanently affordable homeownership units within a mixed-use development project.

(ii) Funds expended for the program may only be used on permanently affordable homeownership units affordable to low and moderate income households

(iii) Funds expended from the program may only be used to fund projects of an appropriate size

33 (c) The secretary of housing and livable communities shall report annually to the clerks
34 of the house of representatives and the senate, who shall forward the report to the house of
35 representatives and the senate and the chairs of the joint committee on housing on the activities
36 and status of the program. The report shall include a list and description of all projects that
37 received funds under the program, the amount of each grant, the number of housing units created
38 by each grant, the number of housing units created at each affordability level, and the size of the
39 projects funded.